

23NWCV01180 23NWCV01180

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Division: Civil Law and Motion

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Case Number: 23NWCV01180 Hearing Date: July 2, 2026 Dept: L

Defendant FCA US, LLC's Motion
to Tax Costs is DENIED.

Defendant to give notice.

Background

This is a lemon law action regarding a 2018 Jeep Wrangler Unlimited. On April 18, 2023, Plaintiffs Leonel Manzo and Jessica Manzo ("Plaintiffs") filed this action against Defendant FCA US, LLC, Champion Chrysler Jeep Dodge Ram, and Does 1 to 10. The Complaint alleges the following causes of action: 1) Violation Of Subdivision (D) of Civil Code Section 1793.2, 2) Violation of Subdivision (B) of Civil Code Section 1793.2, and 3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2, 4) Breach of the Implied Warranty of Merchantability, and 5) Negligent Repair.

Trial was held, and the jury returned a verdict on February 4, 2026. Judgment was entered in favor of Plaintiffs in the amount of \$207,220.75 plus prejudgment interest, with costs and attorney's fees to be determined. (2/24/26 Judgment on Special Verdict.)

On March 23, 2026, Plaintiffs filed the Memorandum of Costs, seeking \$5,923.67 in costs.

Defendant FCA US, LLC
("Defendant") now moves to tax costs.

The Court acknowledges that Plaintiffs' opposition was untimely filed. The opposition was due on June 18, 2026, but Plaintiffs filed the opposition on June 22, 2026. However, the Court exercises its discretion to consider the opposition.

Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc. section 1032, subd. (b).) Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. section 1032, subd. (c)(2).) "Allowable costs shall be reasonable in amount." (Code Civ. Proc. section 1032, subd. (c)(3).)

"Items not mentioned in [Section 1033.5] and items assessed upon application may be allowed or denied in the court's discretion." (Code Civ. Proc., § 1033.5, subd. (c)(4).) There is no requirement that copies of bills, invoices, statements, or

any other such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308.)

On a motion to tax costs, "[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) "The court's first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by

arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224.)

Discussion

Defendant moves to tax the entire

Memorandum of Costs on the grounds that the it was prematurely filed before entry of judgment. Defendant asserts that, pursuant to California Rules of Court, Rule 3.1700(a)(1), a memorandum of costs must be filed after entry of judgment. Defendant represents that no judgment has been entered in this action at the time the Motion was filed. (Abramova Decl., ¶ 4.) Thus, the Memorandum of Costs is void.

In a late opposition, Plaintiffs

explain that the Court signed and entered Judgment on the Special Verdict submitted by Plaintiffs' counsel on February 24, 2026. (Rader Decl., ¶ 1, Exh. 1.) The Memorandum of Costs was filed on March 23, 2026. This Motion was filed on March 30, 2026. Because the Memorandum of Costs was appropriately filed after entry of judgment, it is not void.

In reply, Defendant argues that,

at the time the Motion was filed, the docket reflected no entry of judgment. Plaintiffs point to no notice of entry of judgment or other record that would have made the alleged entry apparent at the time.

The Court has reviewed the case

file. The Court can only make its determinations based on what is currently in the case file, not based on what Defendant purportedly observed at the time this Motion was filed. According to the current case file, Plaintiffs were ordered to prepare the judgment after the jury verdict was returned on February 4, 2026. (See 2/4/26 Minute order.)

On February 10, 2026, the Court

received Plaintiffs' Proposed Special Judgment on the Special Verdict. The Judgment was signed by the Court on February 24, 2026 and refiled on February 27, 2026.

Thus, the Court finds that

judgment was entered prior to Plaintiffs' filing of the Memorandum of Costs on

March 23, 2026. Thus, the Memorandum of Costs is not void. Defendant does not move to tax costs on any other grounds.

Accordingly, Defendant's Motion to Tax Costs is denied.